

Daily Status
IN THE COURT OF :COURT 7 ADDL SESSIONS JUDGE
Case No. :MISC APPLN MPID/0100668/2021
Hemant Chheda Vs The State Thr. EOW Unit 7
Date : 07-07-2021

Business

: SPP Adv. Tendulkar for State and HC Desai of EOW present. Adv. Khushbu Jain h/f Adv. Sudha Diwedi for applicant present. ORDER By the instant application U/s 9 of the Maharashtra Protection of Investments of Depositors (In financial Establishments) Act, 1999 (herein after MPID ACT), the applicant Hemant Chheda has prayed to accept the security offered in lieu of attachment of the bank accounts no. 777705500114, 777705500113, 777705500112 in ICICI Bank, Prabhadevi Branch and account no. 084511011002882 in Andhra Bank, Mulund West Branch and de-freeze the said accounts and allow their operation. The application is opposed by respondent/EOW by filing say at Exh. 2 and additional say at Exh. 3. Ld. Adv. for the applicant submits that the said accounts are being operated in accordance with the rules, guidelines and provisions of Real Estate Regulation and Development Act, 2016 hereinafter RERA, there is balance of Rs. 972 only in the account no. 777705500114 in ICICI Bank and no balance in other accounts, no purpose will be served by keeping the said accounts freezed. He has also read over contents of the application wherein it is stated that the applicant intends to provide two flats no. 1402 and 1502 valued at Rs.7,72,00,000/- and the applicant is also ready to provide a demand draft of Rs. 50,00,000/-. Ld. Spl. PP has invited my attention to the fact that this court has rejected anticipatory bail application of the applicant and such application before Hon'ble High Court having no. 1164/2020 is pending and if these accounts are released, the applicant will take undue benefit of the said order to press his anticipatory bail application before Hon'ble High Court. She has also invited my attention to the fact that there is fraudulent default in repayment of huge amount of Rs. 609,26,57,000/- and the instant applicant has received more than Rs. 68,00,00,000/- as commission. She has also requested not to release the said accounts because the sale proceeds of the attached project at Dadar will be received in those accounts and if the applicant will succeed in disposing of those amounts, then the object of attaching the property will be frustrated. I have perused the application, documents annexed thereto and reply filed by EOW. As shown in the application there is no much balance in any of the accounts for which the instant application is made. The applicant has not given any details of the amounts which are likely to come in the said accounts to cover the cost of construction, land cost, to cover the costs of the project. He has merely

mentioned that the accounts are opened in compliance of Section 4 of RERA. As rightly submitted by L1. SPP, if these accounts are released, the money will be received in those accounts from the purchasers and there is likelihood that the applicant will dispose off such money. It is pertinent to note that the applicant has allegedly received Rs. 68,00,00,000/- as commission and he is ready to give security of around Rs. 8,00,00,000/- which is not satisfactory and sufficient. Therefore, the application for de-freezing the aforesaid accounts is rejected.

Nature of Disposal : REJECTED
Disposal Date : 07-07-2021

COURT 7 ADDL SESSIONS JUDGE

Daily Status

City Sessions Court, Mumbai

In the court of : COURT 7 ADDL SESSIONS JUDGE**CNR Number :** MHCC020135082021**Case Number :** MISC APPLN MPID/0101419/2021**Hasmukh Lalji Gogri and Ors I versus The State Thr EOW Unit VII****Date :** 30-10-2021**Business**

: Matter newly assigned to this court. SPP Adv. Tendulkar for State present. HC Avhad of EOW present. Adv. Vaghela for applicant present. Copy of application served to HC Avhad today. Prayer clause (b) of the application pertains to giving direction to the investigating officer to communicate and upload all the orders to Maha-RERA, the competent authority and also upload in e-portal of accused project P-51900012105. The application is given to protect interest of the investors. Therefore, I. O. is directed to communicate and upload all orders of this court including freezing the Maha-RERA bank order, attachment orders of Dadar property to upload in e-portal of accused project P-51900012105 as prayed vide prayer clause(b) and submit compliance report on next date. Authenticated copy be given to HC Avhad and applicant for compliance. Adjd to 15.11.2021 for reply.

Next Purpose

: REPLY/SAY

Next Hearing Date

: 15-11-2021

COURT 7 ADDL SESSIONS JUDGE

MHCC020041492022



BEFORE THE DESIGNATED COURT UNDER M.P.I.D. ACT
CITY CIVIL & SESSIONS COURT, MUMBAI

MISCELLANEOUS APPLICATION NO. 457 OF 2022

IN

SPL. MPID CASE NO.1140 OF 2020

Ashwatha Developers	]	
having their site office at F.P.267,	]	
Kawaliwadi, S. K. Bole Road,	]	<i>Applicant/</i>
Dadar (W), Mumbai -400028	]	<i>... Accused</i>

Versus

The State of Maharashtra	]	
(At the instance of EOW, Mumbai)	]	<i>... Respondent</i>

Appearances:-

Ld. Advocate Ponda and Ld. Advocate Karnik for the Applicant.
Ld. SPP Malankar for the State/ Respondent.
Ld. Advocate Darpan Jain h/f Rakesh Agrawal for Intervenor.

CORAM : HIS HONOUR JUDGE
SHRI S. M. TAPKIRE
(Court Room no. 7)

DATED : 22nd December, 2022.

ORAL ORDER

1. The present application has been raised by the applicant/accused no.10 Ashwatha Developers of MPID Special Case no.1140 of 2020 whereby seeking the relief for cancellation of the communication letter issued by respondent/EOW to Sub Registrar not to create third party right over the immovable property final plot no.267 TPS-IV

whereat the construction project of applicant raising by name as Dadar Saiprasad Co-operative Housing Society and for defreezing 3 bank accounts of said FE in ICICI bank and other one bank account in Union Bank, Mulund Branch on appropriate terms and conditions whichever Court may deem fit and on providing security as per provision of Section 9 of The Maharashtra Protection of Interest of Depositors Act, 1999.

2. The respondent/EOW and intervenor/victim Chetan Shah / investors have strongly opposed to the relief sought by the applicant by raising their written submission/objection below Exh.02 and Exh.09.

3. Perused the application, plea grievance submissions raised by the applicant/accused coupled with heap of the documents placed reliance by them. Also perused the written objection of respondent and intervenor/ victim. Heard, Ld. Advocate Ponda along with Ld. Advocate Sandeep Karnik for the applicant. Also heard Ld. SPP V. C. Malankar and Ld. Advocate Rakesh Agarwal with Advocate Darpan Jain for intervenor.

4. Having into consideration the rival submissions, contentions and heap of the record documents relied by the rival parties. Thereby, prima facie inclined the crime vide C.R. No.18 of 2020 has been raised against in all 10 accused. Initially the impugned crime was raised in Matunga Police Station by vide C.R. No.253 of 2020 for the offences under Sections 406, 409, 420, 465, 467, 468, 471 with 120-B of the Indian Penal Code, 1860 (Hereinafter referred as "IPC") and under Sections 3 with 4 of The Maharashtra Protection of Interest of Depositors Act, 1999 (Hereinafter referred to as "M.P.I.D. Act"). The

impugned crime was initially raised against 7 accused along with their FE R. H. Associates. While investigation as the Investigating Agency has inclined transpired the involvement of the present applicant. Thereby against it also submitted charge-sheet, whereby, the applicant/accused no.10 is prosecuted and charge-sheeted for the alleged crime. Further while investigation the Investigating Officer has allegedly issued a letter to the Sub Registrar and banks whereby intimated to the said authority that the immovable property plot no.267 and the construction thereon i.e. flats and shops are pleased to secured. Thereby, informed hereinafter without prior permission of Special MPID Court, Greater Bombay not to create third party interest over it and also freezed in all 19 bank accounts of all the accused person who are partners of M/s. R. H. Associates as well as the applicant and its partners and other concern. Therein in all 4 bank accounts of applicant is also freezed. In regard to seeking the relief the applicant has come with case that the applicant is partnership firm and carrying business of construction of building by raising redevelopment projects. While investigation, the respondent has illegally taken action and forwarded a letter by making communication to the Sub-Registrar by as intimation not to create any third party interest over the immovable property of applicant without permission of Designated Court and freezed 4 bank accounts of them. It is submitted by the applicant that the M/s. R. H. Associates is a financial broking firm and dealing the job as commission agent in loan transactions by providing to the borrowers from the deposits collected from the lenders. While transaction of said deposits by the lenders they used to assure to return the fixed interest on the loan amount provided through them. The alleged deposited accepted sum advanced to the borrowers through M/s. R. H. Associates by charging the commission amount for the transaction of borrowers. As the first informant/lender

has raised the impugned crime against M/s. R. H. Associates and its partners. Thereby, initially against them the alleged crime was pleaded to raised. However, while investigation as transpired the applicant and its partner has obtained huge amount through M/s. R. H. Associates and by siphoned off it misappropriated, thereby the Investigating Officer allegedly in order to secured interest of depositors forwarded a intimation / communication letter to Sub-Registrar by informing that on ~~the immovable property final plot no. 267 TPS IV not to create any third~~ party interest without order of Designated Court. The said communication letter is certainly concern with a part of attachment of property. The said communication letter inclined to applicant when reply filed by respondent Notice of Motion No. 1994 of 2021. The alleged attachment of property of applicant is clearly without any justification and contrary in view of provision of Section 4 of MPID Act. Though the applicant had preferred Miscellaneous Application No.668 of 2021 defreezing of bank account of applicant firm. However, the same is rejected. It was just preferred by the one of the partner Hemant Chheda. However, the alleged action of defreezing of bank accounts and attachment of immovable property did against the provision of MPID Act. The said communication order itself is ultra virus and illegal. Further they submitted that the applicant is ready to provide adequate security as per provision of Section 9 of MPID for quashing the communication letter forwarded to Sub-Registrar. Thus, the applicant submitted that the action taken by the respondent by as intimation letter to Sub-Registrar and banks are certainly contrary to the provision of Section 4 of MPID Act. The alleged project of building of applicant is owned by BMC which is public scheme. The building construction is going on and selling flats of the saleable area however, due to illegal activities of respondent grave loss would cause to them. On relying such

submissions requested to cancel the letter issued by the respondent to Sub-Registrar for not to create any right of third party over the immovable property of applicant and to defreeze 4 bank accounts of applicant.

5. In support to above such submissions the applicant has placed reliance on following decisions of Hon'ble High Court those are as follows :

- 1 *Motilal Hastimal Bothara Vs. The State of Maharashtra in Criminal Appeal No.1218 of 2002*
- 2 *The Gandhibag Sahakari Bank Limited Vs. M/s. Gruhalaxmi Construction and Land Developers in Criminal Writ Petition no.665 of 2016*
- 3 *Satpal Singh Bachan Singh Naghul & Ors. Vs. The State of Maharashtra & Ors.in Criminal Writ Petition no.89 of 2016*
- 4 *Shri Sant Gajanan Maharaj Urban Credit Co-operative Society Limited Vs. The deputy Commissioner of Police in Criminal Writ Petition no.1034 of 2019*
- 5 *Sudhir Vasant Karnataki & Ors. Vs. The State of Maharashtra & Ors. in Criminal Writ Petition no.2024, 3198 of 2009 and 395 and 2137 of 2010*
- 6 *Munish Bhasin & Ors. Vs. State (Govt. Of N.C.T. Of Delhi) & ors.in Criminal Appeal no.344 of 2009 (Arising out of SLP (Criminal) no.637 of 2008*
- 7 *Imamul Jainul Shaikh Vs. The State of Maharashtra in Criminal Application no.457 of 2018*
- 8 *Mohd. Tariq Vs. Union of India in Criminal Misc. Appln no.12267 of 1988*
- 9 *Anant Kumar Naik Vs. The State of Andhra Pradesh in Criminal Misc. Petn. no. 805 of 1977*

6. The Respondent and intervenor Chetan R. Shah have vehemently opposed to the plea of defreezing and releasing of property raised by the applicant principally on the grounds that the present application is itself not maintainable and cognizable as earlier one of

the partner of applicant has already raised the same and similar in nature's plea and sought relief thereof by as Miscellaneous Application No. 668 of 2021. The same is pleased to be rejected on merits by the Court on 07.07.2021. While rejecting the said plea and relief sought by the applicant, a detailed and well reasoned order has been passed. The said order is not disputed by the applicant or any of the partner before the Hon'ble High Court. Thereby, the said order is attained the finality and confirmed. Therefore, on relying the same and similar grounds plea, grievances, allegations, the subsequent application and plea cannot be considered. The applicant has raised the similar in nature's plea, grievance and thereby seeking the relief of defreezing and cancelling the communication order, thereby, the plea of review or reconsideration of the same plea certainly can not be considered justifiable by any manner. They further submitted that the M/s. R. H. Associates is also a partnership firm and the six accused are partners of said firm. The applicant is also actively involved in impugned matter and crime. The partner of M/s. R. H. Associates are also partners of the present applicant. Moreover, the alleged building project of applicant namely Sai Prasad CHS is an incomplete project. The certain part of said project is a SLR project and the building of the SLR project is already completed. The applicant has accepted the huge amount more than Rs.65 Crores from the depositors. They have not shown any bonafide or intention to repay the accepted deposits amount.

7. The intervenor Chetan Shah additionally submitted that once the property of accused devolved by the MPID Act thereon the respondent / Investigating Officer has to perform the duty saddled as per said Act to secure such properties which concern by the involved investment amount of the crime. The respondent has just in view of

secured the interest of depositors intimated to the concern authority not to any third party interest over the involved properties without consent and order of Designated Court. In fact the Investigating Agency has not attached or seized any property of applicant. By the alleged communication letter here could not be presumed about the attachment of immovable properties. Heap of the investors/ depositors are involved in impugned crime and their investment amount more than Rs.609 Crores is involved. All the accused of impugned crime are arrested and directed to enlarge on bail. While raising bail plea and availing liberty by the accused they all have categorically relied on the plea and circumstance that the Investigating Agency has already secured the properties in tune of more than Rs.500 Crores. Moreover, on relying such submission of accused and applicant they all have availed liberty subject to following conditions. Even they all are also directed not to create any third party interest right over their concern properties. The applicant and all accused are very well aware about the said order of the Court. However, none has objected to the said order with superior forum. Though the partner Hemant Chheda is disputing the said condition by raising Miscellaneous Application for relaxation of said saddled condition. However, the same is yet to be considered and concluded. On relying the plea and submission of applicant and other accused in regard to securance of property in view of protect the interest of depositors, they have availed liberty and now they are raising objection that the Investigating Agency has malafidely and illegally did the act of issuance of letter to the Sub-Registrar by contravening the provision of MPID Act, the same is itself is unjustifiable unsustainable and unconsiderable. On relying it the respondent and intervenor are requested to reject the plea and thereby, declined the relief sought by the applicant.

8. In above such circumstances cautiously having into consideration rival submissions contentions and heap of the record placed reliance by the rival parties coupled with their written notes of arguments and oral submissions, prima facie Thereby, inclined the applicant partnership firm is seeking defreezing of its bank accounts and also raising plea for quashing the communication letter issued by the Investigating Agency to Sub-Registrar in regard not to create third party interest over the immovable property final plot no. 267 of applicant without consent and order of Designated Court. In order to substantiate the plea submissions and thereby, relief sought by the applicant principally come with the case that though the impugned crime is registered and investigated thereby, charge-sheet against all the accused is already submitted, however, the Investigating Officer has just forwarded a letter to the Government for appointment of Competent Authority. The said request is yet to be considered from the Government as still no any Competent Authority is appointed in view of prescribed required compliance of the said Act. The very intention of legislature in regard to attachment of properties of the FE and accused is specified by prescribed Section 4 of the MPID Act. Thereby, in view of the saddle restrictions and prescribed mandate as per Section 4 of the MPID Act only the Competent Authority is having right to seized or attached any property or freezed bank accounts of the concern. The Investigating Agency has no any right and they are not empowered to communicate about anything to any concern authority. Considering such submission and plea. Thereby, prior to discuss about the contradictory facts and circumstance. I felt that alleged communication letter issued by the Investigating Agency to Sub-Registrar required to be considered appreciate cautiously and judiciously. Upon cautiously considered the contents of said letter it reveals the Investigating Officer has intimated

to concern authority that not to create any interest over the property of applicant without consent and order of Designated Court. I felt the material part of said letter required to be reproduce herewith. The same is as :

Final Plot Number 267 हा प्लॉट तसेच त्यावर होणारे बांधकामातील फ्लॅट्स, दुकाने इतर हया मालमत्ता गुन्ह्यात तपासकामी गुंतवणुकदारांच्या हिताच्या संरक्षणार्थ संरक्षित करण्यात येत असुन सदर मालमत्तांबाबत खरेदी / विक्री/गहाण/दान/ भाडेकरार हस्तांतरण इत्यादी कोणत्याही प्रकारचा व्यवहार मा. विशेष सत्र न्यायालय एम.पी.आय.डी. कोर्ट ३६ वे सत्र न्यायालय, मुंबई यांच्या आदेशाशिवाय तसेच आर्थिक गुन्हे विभाग मुंबई यांना सुचित केल्याशिवाय करू नये याबाबत मा. नोंदणी उपमानिरीक्षक सो. नोंदणी कार्यालय, ऑलंड कस्टम हाउस, मुंबई विभाग, मुंबई यांना कळविण्यात आले आहे. तसेच सदरची मालमत्तेबाबत अधिसूचना करण्याबाबत प्रस्ताव शासनास सादर केला आहे.

9. Thus considering the above communication / intimation to Sub-Registrar by Investigating Agency prima facie revealed the concern Sub-Registrar is just intimated that without order of the Designated Court, Mumbai and informed to the EOW not to create any third party interest over the final plot no. 267 and construction thereon. In regard to said communication letter submitted by the respondent/ Investigating Agency that about the property of applicant/ accused is just intimated without consent of Designated Court not to record any transaction in order to protect the interest of depositors. However, the Investigating Agency has not attached the said property as alleged by the applicant. By such rival submissions and availed record prima facie inclined that the applicant is one of the accused of impugned crime. It is alleged that the applicant has get availed the huge deposit amount i.e more than 65 Crores get availed from the M/s. R. H. Associates which was acknowledged by them from various depositors. Moreover, it also

reveals the substantial partner of applicant and M/s. R. H. Associates are the same. They have get transferred the huge deposits amount from the accounts of M/s. R. H. Associates to the accounts of applicant. In that regard no plausible considerable appreciable reason cause assigned by them. The vehement objection of applicant except the Competent Authority no any else can attach any property. However, the respondent has attached the property of applicant. By above such circumstance it is needless to clarify that the present applicant is one of the accused and against it certain serious in natures cognizable considerable plea grievance allegations have been raised. It is alleged that in impugned crime more than Rs.609 Crores deposits amount is involved. Thereby in order to protect the interest of depositors the alleged letter has been issued by the respondent. Further in that respect also inclined that all the accused of impugned crime are enlarged on bail. While raising bail plea by them all have vehemently raised the plea and submissions that the Investigating Agency has already secured the property of accused more than Rs.500 Crores, therefore, interest of the depositors are already secured. On relying such submissions they have succeeded to get the liberty in impugned crime. Moreover, the said plea and submission is also considered by the Court and on relying it awarded the relief of liberty to all the accused. However, now one of the accused has raised the plea and case that the alleged act of secured the property by the Investigating Officer i.e. communication letter issued to Sub-Registrar is itself is ultra virus illegal and it contravention as per provision of said act and relying on it seeking the relief to cancel the said communication letter. Thereby, cautiously and judiciously considered the said circumstances and advanced argument prima facie it reveals certainly the plea and submissions raised by the applicant itself is contravention against the earlier plea raised by them. Moreover,

considering the rule of prudent coupled with conduct behave and demeanor of the accused and applicant which is itself is contraventive thereby, on relying it certainly the one cannot be seek such relief as per their convenience and benefit. Herewith the paramount consideration of the said act i.e. to protect the interest of depositors which is most material important requirement has to be considered seriously.

10. Furthermore, the most material important relevant fact involved and appeared in the impugned matter that the Court has while granting liberty to every accused pleased to directed them not to alienate sale transfer create any third party interest right over the properties of them and their Financial Establishment as well as their blood relatives. Moreover, considering the said condition coupled with other conditions saddled in bail order of every accused they all have unconditionally accepted and acknowledged the same and by furnishing surety get released from the prison. However, later on one of the accused / applicant has raised plea and come with the case that the alleged communication letter in regard to securance of property is ultra virus and malafide. Thereby, seeking relief to cancel the said communication letter. Thus, considering the same, I felt that the accused can not take disadvantage of the circumstance which is already accepted and acknowledged by him.

11. The intervenor and prosecution have vehemently raised the plea objection that the Miscellaneous Application No.668 of 2021 was raised by one of the partner of applicant under Section 9 is pleased to rejected which is undisputed by him. However, again for the same relief the applicant has raised the same and similar set of facts and seeking the same relief, therefore, review of said order in Miscellaneous

Application No.668 of 2021 is, unjustifiable and unwarranted. Considering such submission coupled that the order passed in Miscellaneous Application No. 668 of 2021 dated 07.07.2021 it transpires the plea of defreezing of bank accounts and other consequential relief raised by one of the partner of applicant is pleased to decline. However, the applicant again raised the plea for the same relief on relying similar set of facts plea and grievance. Therefore, prima facie inclined on that account also the plea raised by the applicant cannot be considered.

12. In present matter it is also required to be considered that in impugned crime the fraudulent default of in all amount Rs.609.26 Crores of huge depositors is involved. Moreover till now the applicant has not shown any bonafide or anxiety for the repayment of deposit amount of depositors or secured the interest of them but merely raised the plea on appropriate terms and conditions the relief sought by them be awarded. When the same is prima facie unspecified unclear and ambiguous. Therefore, on mere plea of saddling of condition also can not consider.

13. Thus, in above such eventualities I have not inclined any considerable substance or force in the plea grievance submissions raised by the applicant for the relief sought by them. Hence the present application deserves to be declined. With this passed the following order :

ORDER

The present Miscellaneous Application No.457 of 2022 is hereby rejected and stands disposed of accordingly.



Date : 22.12.2022.

Addl. Sessions Judge,
City Civil & Sessions Court, Mumbai.

Dictated on : 22.12.2022.
Transcribed on : 23.12.2022.
Signed on : 02.01.2023.

"CERTIFIED TO BE TRUE AND CORRECT COPY OF THE ORIGINAL SIGNED JUDGMENT /ORDER"

On 03.01.2023 at 11.14 a.m.
UPLOADED DATE AND TIME

Mrs. G. P. Acharekar
NAME OF STENOGRAPHER

Name of the Judge (with Court Room no.)	H.H.J. S. M. Tapkire C.R. No.07
Date of Pronouncement of Judgment/Order	22.12.2022
Judgment /Order signed by P.O. on	02.01.2023
Judgment/Order uploaded on	03.01.2023

MHCC020001002024



BEFORE THE DESIGNATED COURT UNDER M. P. I. D. ACT
CITY CIVIL & SESSIONS COURT, MUMBAI
MISCELLANEOUS APPLICATION NO. 12 OF 2024
IN
MPID CASE NO.1140 OF 2020

Ashwatha Developers

having their site office,
at F. P 267, Kawaliwadi, S.K.Bole Road,
Dadar (West), Mumbai - 400 028,
Through its Authorized representative
Mr. Jignesh Gala

...Applicant/Objector

Versus

1. State of Maharashtra

At the instance EOW In
C.R.No.18/2000
(transferred from Matunga Police
Station bearing C.R.No.253 of
2020)

2. Competent Authority

Appointed under the MPID Act,
1999)

...Respondents.

3.Chetan R. Shah

...Intervener/
Respondent No.3

CORAM : Shri Abhijeet A. Nandgaonkar
Designated Cour Mpid,
Addl Sessions Judge,(C.R.No.20)
Date: 19.03.2024

Appearance:

Ld. Adv. Mr. Mr. Sandeep Karanik for the Applicant/objector.
Ld. Adv. Ms. Chaitrāli Panshikar for the Respondent/State/EOW
Ld. Adv. Mr. Rakesh Agarwal for the Intervenor/respondent No.3.
Mr. Ravindra Shindgade from office of Competent Authority.
API Mr. Kanhaiya Shinde for E.O.W.

ORDER

(Dictated and pronounced in open court)

By way of this application, the applicant/objector Ashwatha Developers seeking to cancel the attachment and releasing the immovable property described as Sai Prasad Co-operative Housing Society Ltd. Final Plot No. 267, T. P. S. IV, Mahim Division, Kawali Wadi, S.K.Bole Road, Dadar (West), Mumbai 400 028, and four bank accounts bearing Nos. 777705500112, 777705500113, 777705500114 maintained with ICICI Bank Prabhadevi Branch and account no. 084511011002882 maintained with Union Bank, Mulund (West) Branch under Section 7(6) of the Maharashtra Protection of Interest of Depositors (In Financial Establishment) Act 1999 (here in after referred as "MPID Act").

02. The applicant / objector Ashwatha Developers submitted that, Ashwatha Developers is partnership firm indulged in business of constructing buildings and selling it to the purchaser/people. The partners of the firms are Jignesh Gala, Krudent Chheda and Hemant Chheda. The present application is filed under Section 7 of the MPID Act by the applicant/objector under the authorized signature of Jignesh Gala. The objector has filed Miscellaneous Application No. 457 of 2022 before the Special MPID Court challenging the notice dated 19.10.2020 issued by respondent No.1/State EOW on the ground that said police or the office have no jurisdiction to issue notice for attachment in view of

specific provision under the MPID Act. Said miscellaneous application No. 457 of 2022 came to be rejected vide order dated 22.10.2022.

03. The applicant / objector Ashwatha Developers submitted that, they have filed appeal before Hon'ble Bombay High Court for challenging order passed in Miscellaneous Application No. 457 of 2022 vide Criminal Appeal No. 165/2023. During the pendency the appeal, notification dated 22.09.2023 came to be issued by the Respondent No.2/State Government. Therefore applicant/objector sought permission of the Hon'ble Bombay High Court to withdraw the appeal with liberty to file fresh application before the Designated Court. Accordingly said appeal permitted to be withdrawn by order dated 31.10.2023 with liberty to file fresh application before the Trial Court by it expeditious hearing as possible and preferably within eight weeks from the date of the filling the application.

04. The applicant / objector Ashwatha Developers submitted that, without suppressing the earlier proceeding, Mr. Hemant Chheda had preferred an application under Section 9 of the MPID Act for seeking release of the bank account for providing some security, However, said application was also rejected by this court. Apart from this Ashwatha Developers also filed an independent application challenging the notice issued by the Respondent No.1. Which was in the nature of attachment which was also rejected. Against which present applicant/objector preferred an appeal before Hon'ble High Court in which aforesaid order dated 31.10.2023 was passed. The applicant / objector Ashwatha Developers submitted that, Considering the liberty granted by the Hon'ble Bombay High Court to make an application before the trial court for releasing of said property, The applicant/objector Ashwatha Developers approached this court under Section 7 of the MPID act as mentioned above.

05. The applicant / objector Ashwatha Developers submitted that, the attachment order has been passed which shows non application of mind and non fulfillment of Section 4 of the MPID Act. As said notification does not in detail deals with how the alleged financial establishment R.H. Associates is responsible for the fraudulent default as contemplated under Section 4 of the MPID Act. Ashwatha Developers is not concerned with that financial establishment at all as per MPID Act. The applicant/objector Ashwatha Developers only purchased the development rights of property mentioned in the notification which is not purchased out of the crime proceed, hence it could not be attached. There is no justification given in the notification dated 22.09.2023 about the property in question or bank account in question being the subject matter of crime or being the property which is purchased from the crime proceeds. Even affidavit filed under Section 5(3) of the MPID Act does not specifically deal as to how, which of the property have been purchased from the crime proceeding in absence of said justification done in the notification and in the affidavit, the entire notification required to be quash and set aside and the property needs to be released. Therefore applicant/objector Ashwatha Developers approached this court with the same prayers.

06. The applicant / objector Ashwatha Developers submitted that, Ashwatha Developers has entered into development agreement with 81 members/tenants of Dadar Sai Prasad Co-operative Housing Society Ltd. for re-development of the property on 15.10.2003 which is much before taking any loan from any of these 76 claimants. Thereafter it took about four years for obtaining a letter of intent, intimation of disapproval, table survey, individual member consent, necessary permissions and started paying the following accounts for development

which was much before the amount received as a loan i.e. borrower. The present partners of Ashwatha Developers and their shares in the firm are i.e. Jignesh Gala 67% , Hemant Chheda 20% and Krudent Chheda 13%. They have invested amount from the year 2007-2008 till date as per following table--

Year	Amount Invested In Rs.
2007-2008	2,05,72,155/-
2008-2009	2,15,25,077/-
2009-2010	2,81,26,925/-
2010-2011	3,54,59,253/-
2011-2012	3,93,12,599/-
2012-2013	5,35,38,605/-
2013-2014	6,37,79,459/-
2014-2015	6,40,24,088/-
2015-2016	5,66,77,596/-
2016-2017	12,36,87,026/-
2017-2018	12,46,69,536/-
2018-2019	9,50,90,292/-
2019-2020	8,40,24,002/-
2020-2021	2,42,57,182/-

07. The applicant / objector Ashwatha Developers submitted that, thus till the year 2020-2021, Ashwatha Developers has invested total sum of Rs. 83,97,65,043/-. Therefore they submitted that objection raised in the notification in respect of the said account is also required to be released. The account mentioned in Real Estate Regularity Authority (here in after referred as "RERA") which is as per mandate of RERA , the developer has to open three accounts in the same bank which they opened in ICICI Bank, Prabhadevi Branch, Mumbai and in the Union Bank, Mulund West Branch. Accordingly amount credited in the bank official will divide the amount into 70% and 30%. There are three bank bearing Nos. 777705500112, 777705500113, 777705500114 with ICICI Bank Prabhadevi Branch accounts in which said amount is deposited. If these three account remain freezed, applicant/objector

Ashwatha Developers can not proceed further and 81 families will be without their rehabilitation. There is no fraudulent default or fraudulent intention committed by the objector Ashwatha Developers pertaining to the said amount. Even they are ready to pay Rs. 11,87,00,000/- to 76 investors as per their statement. They further stated that alleged people out the 76 who are being paid is quantified to Rs. 3,93,00,000/- and they are eight investors who have been paid said amount.

Sr.No.	Investors	Amount Paid Back (in Rs.)
1	Mr. Johnny Shah	2,95,00,000/-
2	Mr. Jaya Shah	5,00,000/-
3	Mr. Pankaj Gala	15,00,000/-
4	Mr. Vipul Gala	45,00,000/-
5	Mr. Kesarbhai Kaka	10,00,000/-
6	Mr. Shruti Gala	10,00,000/-
7	Mr. Hira Gala	10,00,000/-
8	Ms. Pooja Gala	3,00,000/-
	TOTAL	3,93,00,000/-.

08. The applicant / objector Ashwatha Developers submitted that, objector/applicant Ashwatha Developers are not at all concerned with the amount of fraudulent default. Investment with the financial establishment, question of attachment of their property by way of said notification is not permitted hence it be released. Even the objector submitted that there are seven investors who had filed a summary suit against the objector and had entered into consent terms and the said consent terms have been before court by the objector. Investors have no grievance against present objector and liability quantified around Rs. 52,00,000/- needs to be deleted which is quantified to Rs. 7.94 Crores. Thus the outstanding liability fasten against the Ashwatha Developers could be around 7.42 Crores. which the objector is ready to deposit

before this court if reasonable time is given without prejudice to their rights and contention and without admitting any guilt in the present case.

09. The applicant / objector Ashwatha Developers submitted that, due to such kind of vague notification fundamental rights guaranteed under Article 300 of the Indian Constitution are violated and hence required to be quashed and set aside. Even FIR which is registered in the year 2016. Certain balance amounts which needs to be recovered from the flat purchasers which could be only done if there is progress in the construction activity and if it can not be commenced, objector could face serious issue and hence if conditional order be passed and objector be permitted to deposit amount of Rs. 7.42 Crores within six months from passing of the order and after depositing said amount Hon'ble Court be permitted the objector to start the construction work on the said premises by de-freezing their bank account and releasing the property from attachment. Hence prayed to allow the application.

10. Notice came to be issued to the respondents. Respondent No.1 State/Competent Authority filed their reply vide Exh. 6. State/EOW filed their reply vide Exh. 5 dated 26.02.2024 and vide Exh.7 dated 09.03.2024. Respondent No.3/Intervenor filed their reply vide Exh. 10. During the hearing of this application intervenor has moved an miscellaneous Application No. 85 of 2024 for adding him to intervene in the present miscellaneous application which came to be allowed by this Court vide order dt. 29.01.2024. An intervenor/ respondent No.3 Chetan Shah vide Exh. 3 filed their detailed reply.

11. Meanwhile another miscellaneous application no. 194/2024 came to be filed by the intervenor Chetan Shah to add M/s PVV Infra

Ltd. as respondent No.4 in Miscellaneous Application No. 12/2024 as intervenor Chetan Shah came to the knowledge that Ashwatha Developers have inter-alia connected with PVV Infra Ltd. which is required to be made party respondent No.4 in Miscellaneous Application No. 12/2024. Even though matter being High Court Time Bond, said miscellaneous application No. 194/2024 was heard at length and detailed order came to be passed by rejecting the said application by order dated 05.03.2024.

12. The State/EOW submitted that, initially offence was registered by Matunga police station vide crime no. 253/2020 for the offence punishable under Sections 406, 409, 420, 465, 467, 468, 471 and 120(B) r/w Section 34 of the IPC read with Sections 3 and 4 of the MPID Act. which was then transferred to EOW vide crime No. 18/2020. The offence is registered on the complaint of Mr. Rajesh Manhar Shah against accused nos 1 to 8 who are released on bail. Accused No.9 is M/s R. H. Associates a Partnership Firm and accused no.10 is M/s Ashwatha Developers. The State/EOW submitted that, from the complaint received and during the investigation it was revealed that, financial establishment has duped the investors for Rs. 116 Crore by assuring them to give handsome return and used their money for themselves, their family member and other beneficiaries by offering them brokerage. As per company's record question amount is Rs. 609 Crore and during investigation was revealed and that said amount is now groomed to more than Rs. 666 Crores. Accordingly, after the investigation chargesheet came to be filed vide MPID case No. 1140/2020 alongwith documents before this court which is pending.

13. The State/EOW submitted that, in this matter there are six partners of M/s R. H. Associates who are dealing with financial establishment as per their Partnership Deed and their shares in partnership firm are as under

Sr.No.	Name of the Partner	Share
1.	Ramnik Chhaganlal Dedhia	27%
2.	Hasmukh Lalji Gogri	22%
3.	Mukesh Nanji Chheda	17%
4.	Pankaj Dhanji Chheda	15%
5.	Khushal Bhavanji Chheda	11%
6.	Dilesh Nagji Vira	08%
	Total	100%

14. The State/EOW submitted that, during the course of investigation a proposal has been moved and accordingly the State Government issued notification dated 22.09.2023 under which around 26 immovable properties are attached, Nineteen bank accounts are freezed, Five four wheelers and five two wheelers are seized. Out of which applicant/objector's immovable property i.e. Dadar Sai Prasad Co-operative Housing 'Society Ltd. (Proposed), Plot No. 267, Kavalwadi, S.K.Bole Road, Dadar (West), Mumbai 400 028, is shown at serial No.10 of immovable properties and four bank accounts Ashwatha Developers bearing Nos. 777705500112, 777705500113, and 777705500114 maintained with ICICI Bank Prabhadevi Branch and bank accounts of M/s R.H. Associates bearing Nos.04060200001482 maintained with Bank of Baroda which also came to be seized.

15. The State/EOW submitted that, from the detailed investigation, it was revealed that Ashwatha Developers is a partnership firm registered vide MU000005965 Under partnership Act. PAN No. AAIFA2090E. Register address is 2/3 Hetal, Zaver Road, Mulund (West), Mumbai 400 080. Application No. 4780000917046 in which there are

ten partners. Out of which partner No.3 Jignesh Kulin Gala, No.7 Krudent Hemant Chheda and No.8 Hemant Nanji Chheda are also partners in M/s R.H. Associates a financial establishment. M/s R.H. Associates through its relatives and employees have received huge amount from the investor in which Jignesh Kulin Gala and Ashwatha Developers and in receipt of Rs.36,51,50,000/-. Jignesh Kulin Gala who is partner in Moraji Gala & Sons also have borrowed loan for more than Rs.1,11,00,00 from M/s R.H. Associates. Considering all these interse involvement, the prosecution submitted that from 394 investors amount of 116 crores has been duped by M/s R.H. Associates. It is also revealed that there are 911 investors who invested by cheque in said financial establishment. It was also revealed during the investigation, till this date more than 1653 investors have invested more than Rs. 666 Crores and they have been duped.

16. The State/EOW submitted that, Mr. Jignesh Kulin Gala is the partners of Ashwatha Developers and holding 67% shares and Hemant Nanaji Chheda is holding share 20% and Krudent Hemant Chheda is holding 13% . They all have obtained loan from M/s R.H. Associates and invested in Ashwatha Developers. Therefore, the amount mentioned, is obtained from the investors and hence if notification dated 22.09.2023 is set aside as prayed, the tainted property if released and four bank accounts are defreezed the investors will suffer huge loss.

17. The State/EOW further specifically submitted that, forensic audit is under process and the amount of investor may raise further including number investors. Lastly they submitted that accused Jignesh Kulin Gala and accused Hemant Nanji Chheda have preferred miscellaneous application No. 457/2022 and 668/2021 for releasing the attached

property and defreezing bank accounts, but considering their active role and gravity of offence, this court rejected the same. Therefore this application is also liable to be rejected.

18. Competent authority in their reply specifically contended that pertaining to crime No. 18/2020 registered with Matunga police station for the offence punishable under Sections 406, 409, 420, 465, 467, 468, 471 and 120(B) r/w Section 34 of the IPC read with Sections 3 and 4 of the MPID Act lodged against Ashwatha Developers and M/s R.H. Associates which are partnership firms. It was found that, partners, relative and office bears representative of M/s R.H. Associates have conspired and lured the complainant and others by giving handsome rate of interest and have induced the complainant and others to deposit with them. They even handed over bill of exchange and promissory note but failed to returned them as per their agreed interest rate 1.0% to 1.02% per month. Therefore M/s R.H. Associates have deployed and cheated around 441 investors to the tune of Rs. 112 Crores at that time and against the said financial M/s R.H. Associates through its partners and office bearers/representative diverted the monies collected as deposits to purchase properties in its name or in the name of relatives of the partner, officer bearer representative and others are liable for attachment, for the purpose of repayment of money to the depositors as per the provision of MPID Act. State Government has issued notification the and property is attached to repay the investors. Therefore objection raised on various ground which are mentioned in present miscellaneous application is not proper and correct.

19. Competent authority submitted that, on the other hand competent authority by virtue of Section 4(2) of the MIPD Act have also

filed affidavit in concerned with said notification as such objection of notification to attached the property is to recover money by its sell, if attachment is made absolute by this court with view to protect interest of the investors. Therefore competent authority be allowed to auction the property by making said notification absolute to recover money to pay back to the investors and prayed that application be rejected.

20. Intervenor/applicant Mr. Chetan R Shah in their reply specifically submitted that, they moved miscellaneous application No. 85/2024 with specific prayer permitting them to take part in the proceeding as they are also investor and sufferer. They further clarified that all the partners in M/s R.H. Associates including partner Hemant Chheda is one of the partner in Ashwatha Developers who is also real brother of Mukesh Nanji Chheda. They further submitted that Jignesh Chheda is nephew of Hemant Chheda and Krudent Chheda is son Hemant Chheda. They are closed relative of partnership firm M/s R.H. Associates and family members of Ashwatha Developers.

21. Intervenor/applicant Mr. Chetan R Shah in their reply submitted that, In Anticipatory bail application No. 1639/2020 filed between Hemant Chheda one of the partner /objector Ashwatha Developer, the liability of Hemant Chheda is then brought to the notice is redressal of Amount Rs. 65,87,00,000/- which was received by partners of Ashwatha Developers and their relative which is more than of Rs. 6,05,832/- which is to be noted that accused Ramniklal Dedia was also partner in Ashwatha Developers at material point therefore said ABA No.1639/20 came to be rejected by order dated 19.12.2018. Being aggrieved against that order Hemant Chheda approached Hon'ble High Court, but he was arrested and thereafter released on bail. Even accused

Jayesh Dedia who is holder of power of attorney of his father though also related to Dedia through Ashwatha Developers and another.

22. Intervenor/applicant Mr. Chetan R Shah in their reply submitted that, it is to be noted that miscellaneous application No. 457/2022 came to be moved before this court which was after hearing of both sides came to be rejected by this court therefore the prayer made in the said application has been again reproduced by way of objection by Ashwatha Developers, is not proper and not maintainable and therefore said application required to be rejected. Even appeal preferred against the order in miscellaneous application 457/200 before Hon`ble Bombay High Court having criminal appeal no. 165/02022 was also withdrawn there is though permission was granted to withdraw the same on condition, but the findings record by this court are as it is. in the light of this submission they submitted that, liability of objector/applicant being quantified due to relation to M/s R.H. Associates, the question of de-notifying property and permission to defreezing said account does not arise. Hence application is required to be rejected with compensatory cost.

23. Heard Ld. Adv. Mr. Sandeep Karanik for the Applicant/objector. Ld. APP. Ms. Chaitrali Panshikar for the Respondent/State/EOW. Ld. Adv. Mr. Rakesh Agarwal for the Intervenor/respondent No.3 Chetan R. Shah. Mr. Ravindra Shindgade of Competent Authority. A.PI. Kanhaiya Shinde for EOW at length. Perused submission and document annexed to it.

24. Prior to going to reasoning part, it is necessary to mention here that, in view of the direction of Hon'ble Bombay High Court in Criminal Appeal No.165/2023 dated 31.10.2023, it was directed to decided said

application as expeditiously as possible and preferably within eight weeks from the date of filling of the application. The objection/applicant filed this application 03.01.2024 and thereafter notice came to be issued meanwhile miscellaneous application for intervention came to be filed. In which time was consumed for hearing and thus came to be allowed by order dated 29.01.2024. Thereafter intervenor Chetan R. Shah also moved miscellaneous application No. 194/2024 for adding PVV Infra Ltd. to be made party as respondent No.4 in Miscellaneous Application No. 12/2024, in which also for calling up say of all the parties concern and reply and hearing much time lapsed and it was disposed of by order dated 05.03.2024.

25. First objection which was raised in respect of tenability of said miscellaneous application no. 12/2024 is necessary to be dealt with. It is admitted position that, this application is moved under Section 7 of the MPID Act by Ashwatha Developers thorough authorized representative Mr. Jignesh Gala it is admitted fact Jignesh Gala who is holder of 67% shares in the partnership firm Ashwatha Developers who is relative of accused in the crime . It is admitted fact that, in which the direction of Hon'ble Bombay High Court have been sought to withdraw Criminal Appeal 165/2023 preferred against order passed by this court in Miscellaneous Application No. 457/2020 by order dated 22.12.2023. Therefore it is pertinent to note that detailed order of Hon'ble Bombay High Court No. Criminal Appeal No. 165/2023 passed on 31.10.2023 of which relevant para is reproduced as under --

1..... ""He is submitted that in view of the subsequent development he be permitted to withdraw aforesaid appeal with liberty to file a fresh application before the Trial Court

5. In the event, a fresh application is filed by the appellant challenging the attachment of the property/accounts of the appellant before the trial court. The learned Judge to decide the said application as expeditiously as possible and preferably within eight weeks from the date of filing of the application.

26. Thus interpretation of this order is permitted to withdraw the aforesaid application with liberty to file fresh application has been tried before this Court. Ld. advocate -Mr. Sandeep Karnik for the applicant/objector submitted that, they are permitted to file fresh application for releasing the tainted property as well as defreezing bank account due to the fact that subsequent notification came to be published on 22.09.2023. As they have challenged the notice issued by the police and no objection has been given by the State question of raising objection about tenability of this M.A. does not arise.

27. On the other hand Ld. advocate for the intervenor sought my attention to the fact that, finding recorded by this court by predecessor of this court in miscellaneous application No. 457 of 2022 order dated 22.12.2022 remain as it is. The Hon'ble Bombay High Court does not even whisper a single word about it. Thus even if withdrawal is permitted, no fresh application is tenable. Further they submitted that when same type of application which was already decided on merit, it is not proper to go into said application again, is nothing but review of the order of this Court which is not permissible. He further submitted that it is abuse of process of law in the event if such application is not allowed.

28. Ld. Adv. placed reliance on the authority of **Gauhati High Court in First Appeal No. 152 of 1996 dated 08.04.1997 in case of Dipak Das Vs. Dharjyodhan Deb and others** wherein it is held that

" 11 As per the provision of Order 23 Rule 2, It is clear that general law of limitation for institution of a suit shall apply in respect of fresh suit instituted after withdrawal of the former suit on permission of the court, in the manner as if the first suit had not been instituted. Thus according to the said provision with regard to the question of limitation, general law of limitation shall apply and as such no new law of limitation may or can be prescribed by the court in violation of provision of law.

12 Under Sub- rule 3 of the Rule 1 of order 23 the Court may impose the condition while allowing the plaintiff to withdraw the suit thus court has jurisdiction to impose such condition on such terms as it thinks fit considering the facts and circumstance of the case. Thus, my considered view is that while imposing any condition, the court cannot impose such a condition which may be against the expressed provision of law prescribed by statute. In other words the condition to be imposed by the court should not be in contravention of the provision of a statutory law. It cannot be against the expressed provision of law. The court cannot go beyond law. If the condition imposed by the law is against the provision of law then the said condition be void and non-est as being ultra vires the providing of statute. The court can neither extend nor shorten the period of limitation prescribed by statute.

29. He has also relied on the authority of Hon'ble Supreme Court in the case **Asgar And Others Vs. Mohan Varma And Others (2020) 16 Supreme Court Cases 230** where in it is held that

These observations as contained in the order of this Court cannot be construed to mean that the respondents would be deprived of their right to set up a plea of constructive res judicata if the appellants were to raise such a claim. The appellants were, as this Court observed, free to pursue the "appropriate remedy for redressal of their grievances in

accordance with law." This must necessarily be construed to mean that all defences of the respondents upon the invocation of a remedy by the appellants were kept open for decision. The liberty granted by this Court was not one-sided. It encompasses both the ability of the appellants to take recourse and of the respondents to raise necessary defences to the invocation of the remedy. Therefore, we do not find any merit in the submission urged on behalf of the appellants that the earlier judgment of the Kerala High Court and the order of this Court preclude the respondents from raising the bar of constructive res judicata.

30. Therefore it was brought to the notice of Hon'ble Bombay High court in Criminal application 1274 of 2014 by order dated 04.03.2015 in respect of the same point where in a issue has been discussed in para 12 as--

"12..."⁴⁹ Thus, the law on the issue can be summarised to the effect that the criminal justice delivery system does not clothe the court to add or delete any words, except to correct the clerical or arithmetical error as specifically been provided under the statute itself after pronouncement of the judgment as the Judge becomes functus officio. Any mistake or glaring omission is left to be corrected only by the appropriate forum in accordance with law."

17 Considering the judgments; which have been referred to by me herein above, it is abundantly clear that the order can be recalled only if the opportunity is not given to the party adversely affected by the order. In the present case the applicant's advocate was heard at length for few hours and almost all issues were argued before me by the learned counsel. Therefore, it cannot be said that the opportunity was not given to the applicant of being heard. More than sufficient opportunity was given to the applicant. Some of the observations made by this Court, which are stated to be prejudicial to the interest of the applicant, are made on the basis of the statement of allegations against the applicant filed by respondent - No. 1. It is possible that certain portion of the order may contain certain observations without there

being detail deliberation at the time of hearing. Such observations are not necessarily incorrect only because there was no detail deliberation. In any event, if this Court has committed some mistake or error while making such observations, the same cannot be cured by this Court by recalling the order.

18 In this regard one may refer to the judgment of Hon'ble Supreme Court in the matter of **State of Punjab v. Davinder Pal Singh Bhullar & Ors. (cited supra)**, where it is clearly stated that any mistake or glaring omission shall be left to be corrected only by the appropriate forum in accordance with law. It is further stated that the criminal justice delivery system does not clothe the court to add or delete any words, except to correct the clerical or arithmetical error. Hence, I am of the view that even if some mistake or glaring omission has been committed by this Court, while passing the order dated 19th of November, 2014, the same is subject to the decision of the Hon'ble Supreme Court. I do not think that recall of order is remedy for the same.

31. Therefore it is submitted that there is limited scope for arithmetical correct permitted. In Criminal Appeal No.374 of 1993 reported in 1995(II) OLR-132 in case of Radindra Sabar and other Vs. State. Wherein it is held that

as per CODE OF CRIMINAL PROCEDURE, 1973 SEC.362 Re-hearing of appeal -After the judgment or final order has been passed disposing of the case either in appeal or revision, the court cannot alter or review the same except to correct a clerical or arithmetical mistake inherent power cannot be invoked which is specifically prohibited in the Code.

preTje The present is not a case to correct any clerical or arithmetical error which is permissible under Sec, 362 of the Code. It is a case where the appellant seeks re-hearing

of the appeal on some additional grounds. In view of the aforesad legal position. I am afraid his prayer cannot be conceded. Accordingly the petition is rejected.

32. Ld. advocate for the intervenor also relied on the judge of Hon'ble Supreme Court (2001)1 Supreme Court Cases 169 in case of **Hari Singh Mann Vs. Harbhajan Singh Bajwa And Other** wherein it is held that,

“Section 362 of the Code mandates that no Court, when it has signed its judgment or final order disposing of a case shall alter or review the same except to correct a clerical or arithmetical error. The Section is based on an acknowledged principle of law that once a matter is finally disposed of by a Court, the said Court in the absence of a specific statutory provision becomes functus officio and disentitled to entertain a fresh prayer for the same relief unless the former order of final disposal is set aside by a court of competent jurisdiction in a manner prescribed by law”.

33. Ld. advocate for the intervenor also relied on the judge of Hon'ble Supreme Court reported in (2020)2 Supreme Court Cases 14 in the case of **Dilip Singh Vs. State of Uttar Pradesh And Others**.

24. From what we have mentioned above, it is clear that in this case efforts to mislead the authorities and the courts have transmitted through three generations and the conduct of the appellant and his son to mislead the High Court and this Court cannot, but be treated as reprehensible. They belong to the category of persons who not only attempt, but succeed in polluting the course of justice. Therefore, we do not find any justification to interfere with the order under challenge or entertain the appellant's prayer for setting aside the orders passed by the prescribed authority and the appellate authority.

34. He further submitted that under MPID Act, the summary proceeding has been contemplated for decision of the objection under order 37 of the Code of Civil Procedure. As discussed in Criminal Appeal No. 813 of 2016 in Case of **Mr. Suresh RAju Shetty Vs. State of Maharashtra** and

Anr. It is held that

"Further in dealing with the objection of attachment, the power of Designated Court and in terms of Section 7 enable it to deal with the same thoroughly, Sub-section (5) of Section 7 enables investigation of the claim/objection, examination of the parties and the Designated Court can, subject to the provision of the MPID Act, follow the summary procedure as contemplated under Order 37 of the Civil Procedure Code, 1908 and exercise all the powers of a Court while hearing a suit under the Civil Procedure Code, 1908 and any person making an objection shall be required to adduce evidence to show that on the date of the attachment, he had same interest in the property attached.

35. After going through the submission of both the sides it is clear that notification has been issued, which is under challenge on 22.09.2023 tainted property at serial No.10 as well as four bank accounts are at serial No. 16 to 19 therefore if we go to the wording of notification it revealed as discussed earlier M/s R.H. Associates is a financial establishment whose partners have been involved in this crime and there have been involved in this crime and therefore as per the report of investigating officer amount is raised upto Rs. 666 Crores including of more than 1653 investors:
36. The prime consideration is toward beneficial interest of the investors in view of the scheme of the MPID Act. The said scheme has been highlighted by the competent authority in their reply also and therefore investigating officer reaching to the conclusion that detail forensic investigation is required the permission to defreeze their property tainted in the notification and the account related to that properties as declared in RERA.
37. Admittedly when the permission is granted to withdraw Criminal Appeal No. 165/2023 preferred by Ashwatha Developers before

Hon'ble Bombay High Court dated 31.10.2023 against order in miscellaneous application No. 457 of 2022, the finding record by this court have not been set aside or even interference, interpreted or intervene is set aside in this situation subsequent maintainability of the application is definitely be considered in the light of above observations of the Hon'ble High Court and Apex Court.

38. Therefore the first and foremost object of the MPID Act is considered which is for beneficial interest of the investors any how releasing their amount duped through financial establishment due to which notification has been issued. Question of issuing subsequent notification prior to the notice challenge does not give right, authority or permission to the objector Ashwatha Developers whose partners are directedly involved as partner in financial establishment who were accused in this crime. Therefore the question of tenability of this application have been raised even by the prosecution and intervenor/applicant needs to be consider in that prospect. Therefore I am of the specific view the subsequent application is not tenable. On this account itself, application fails on it's tenability and maintainability.

39. Further more as also discussed that the involvement of the applicant through its partner's directly involved through their relative with M/s R.H. Associates a financial establishment who involved in defrauding the investors in which further investigation is required and the report of forensic auditor yet to be come. It will be pre-mediated released of the property under the notification. Therefore without discussing much more I am of the view that application moved by the applicant/objector challenging the notification dated 22.09.2022 permitted to defreeze their four bank accounts mentioned in RERA in respect of said property which alleged to have been obtained for development purpose being

tainted property can not be released and notification to that account can not be set aside.

40. The scope of Section 7(6) of the MPID Act even if considered, it is this designated court may permit the order of attachment passed by the competent authority to absolute or varying by releasing said portion from attachment by considering the order of attached subject to the provision that the said attachment should be released and should be sufficient to satisfy the claim of the investor. Thus considering pre-meditated offence made out and considering interest of the investors whose hard earned money is involved, amount invested by the applicant/objector for redevelopment project can not be considered in the right of the investors duped amount which has been raised even admitted about 76 investors to Rs. 3.98 Crores outstanding.
41. Hence condition sought for releasing said by seeking conditional order from this court to permit the objector to deposit 76.32 Crores with specific under taking has no substance and required to be thrown away there. Therefore in the result application/objection moved by Ashwatha Developers through his authorized representative Jignesh Gala required to be dismissed and to be rejected. Hence, I proceed to pass following order.

ORDER

1. Miscellaneous Application No. 12/2024 in MPID Spl. Case No. 1140/2020 moved by applicant/objector Ashwatha Developers through its authorized representative Mr. Jignesh Gala under Section 7(6) of the MPID Act for canceling the attachment and releasing the immovable property described as Sai Prasad Co-operative Housing Society Ltd. Final Plot No. 267, T. P. S. IV, Mahim Division, Kawali Wadi, S.K.Bole Road, Dadar (West),

Mumbai 400 028, and four bank accounts bearing Nos. 777705500112, 777705500113, 777705500114 maintained with ICICI Bank Prabhadevi Branch and 084511011002882 maintained with Union Bank, Mulund (West) Branch from notification dated 22.09.2023 stands dismissed.

2. No order as to costs.
3. Case papers be filed.
3. Accordingly, Miscellaneous Application No. 12/2024 in MPID Spl Case No. 1140/2020 stands disposed off.

19/03/2024

(Abhijeet A. Nandgaonkar)
Special Judge, C.R.NO.20
City Civil & Sessions Court,
Gr. Bombay.

Dictated on : 19.03.2024
Transcribed on : 22.03.2024
Signed on : 22.03.2024

**CERTIFIED TO BE TRUE AND CORRECT COPY OF THE ORIGINAL
SIGNED JUDGMENT/ORDER".**

19.03.2024

Mrs. R.R.Hate

Name of the Judge	HHJ Shri ABhijeet A. Nandgaonkar
Date of Pronouncement of judgment/order	19.03.2024
Judgment and order signed by P.O.	22.03.2024
Judgment/order uploaded on	22.03.2024



सत्यमेव जयते

महाराष्ट्र शासन राजपत्र

असाधारण भाग चार-ब

वर्ष ९, अंक १२९]

सोमवार, सप्टेंबर २५, २०२३/आश्विन ३, शके १९४५

[पृष्ठे १३, किंमत : रुपये ९.००

असाधारण क्रमांक ३६७

प्राधिकृत प्रकाशन

महाराष्ट्र शासनाने महाराष्ट्र अधिनियमान्वये तयार केलेले
(भाग एक, एक-अ आणि एक-ल यांमध्ये प्रसिद्ध केलेले नियम व आदेश यांव्यतिरिक्त) नियम व आदेश.

गृह विभाग

दुसरा मजला, मंत्रालय, मादास कामा मार्ग, हुतात्मा राजगुरू चौक, मुंबई ४०० ०३२,
दिनांक २२ सप्टेंबर, २०२३.

आदेश

महाराष्ट्र ठेवीदारांच्या (वित्तीय संस्थांमधील) हितसंबंधाचे संरक्षण अधिनियम, १९९९.

क्रमांक एमपीआय-११२३/प्र.क्र.५५४/पोल-११.— ज्याअर्थी, आर. एच. असोसिएट्स (यापुढे "उक्त वित्तीय संस्था" असे संबोधिले आहे.) ही वित्तीय संस्था आणि सदर संस्थेचे अध्यक्ष, संचालक, व्यवस्थापक आणि प्रवर्तक किंवा कर्मचारी यांनी रहिवासी इमारतीमधील सदनिका विक्री करण्यापूर्वी ग्राहकांकडून ठेवी स्विकारल्या होत्या;

आणि ज्याअर्थी, उक्त वित्तीय संस्था व सदर संस्थेचे अध्यक्ष, संचालक, व्यवस्थापक आणि प्रवर्तक यांनी ठेवीदारांनी ग्यिकारलेल्या ठेवी मूदतपूर्तीनंतर परत करण्यास कसूर केली असल्याने त्यांच्याविरुद्ध माटुंगा पोलीस ठाणे येथे गु. र. क्र. २५३/२०२० कलम ४०६, ४०९, ४२०, ४६५, ४६७, ४६८, ४७१, २०१, १२०(ब), ३४ भादवि (१८६० चा ४५) सह महाराष्ट्र ठेवीदारांच्या (वित्तीय संस्थांमधील) हितसंबंधांचे संरक्षण अधिनियम, १९९९ (महा. २००० चा १६) च्या कलम ३ व ४ अंतर्गत गुन्हा दाखल करण्यात आला आहे;

आणि ज्याअर्थी, महाराष्ट्र शासनाची अशी खात्री झाली आहे की, उक्त वित्तीय संस्था आणि सदर संस्थेचे अध्यक्ष, संचालक, व्यवस्थापक आणि प्रवर्तक हे ठेवीदारांना त्यांच्या ठेवी मुदतपूर्तीनंतर परत करण्यास अपयशी ठरले असून उक्त वित्तीय संस्थेद्वारे ठेवीदारांच्या ठेवी परत करण्याची शक्यता दिसून येत नाही;

आणि ज्याअर्थी, महाराष्ट्र शासनाला, उक्त वित्तीय संस्थेने जमा केलेल्या ठेवींमधून त्यांच्या स्वतःच्या अथवा अन्य व्यक्तींच्या नावे रकमा व अन्य मालमत्ता संपादित करण्यात आल्या असल्याचे अभिकथित असल्याने उक्त वित्तीय संस्थेमधील ठेवीदारांच्या हिताचे संरक्षण करण्यासाठी अशा रकमा किंवा अन्य मालमत्ता जप्त करण्याचे आणि अशा जप्त रकमा किंवा अन्य मालमत्ता यांवर नियंत्रण ठेवण्याकरिता उप जिल्हाधिकारी (एमपीआयडी) तथा सक्षम प्राधिकारी, मुंबई शहर यांची सक्षम प्राधिकारी म्हणून नियुक्ती करणे आवश्यक वाटते.

त्याअर्थी, आता, महाराष्ट्र ठेवीदारांच्या (वित्तीय संस्थांमधील) हितसंबंधाचे संरक्षण अधिनियम, १९९९ (महा.२००० चा १६) याच्या कलम ४ व कलम ५ चे पोट-कलम (१) याद्वारे प्रदान करण्यात आलेल्या अधिकारांचा वापर करून महाराष्ट्र शासन याद्वारे,—

(अ) आर.एच.असोसिएट्स, २३, मोरेश्वर बिल्डिंग, १ ला माळा, लखमशी नप्पु रोड, माटुंगा, सीआर, मुंबई ४०० ०१९, या संस्थेची आणि सदर संस्थेचे अध्यक्ष, संचालक, व्यवस्थापक, प्रवर्तक आणि कर्मचारी किंवा कॅण्टीही अन्य व्यक्ती यांच्या नावे असलेली, सोबतच्या अनुसूचीत विनिर्दिष्ट केल्याप्रमाणे रकमा व अन्य मालमत्ता जप्त करित आहे, आणि

(आ) अशा जप्त केलेल्या रकमा व अन्य मालमत्ता यांच्यावर नियंत्रण ठेवण्यासाठी उप जिल्हाधिकारी (एमपीआयडी) तथा सक्षम प्राधिकारी, मुंबई शहर यांची सक्षम प्राधिकारी म्हणून नियुक्ती करित आहे.

अनुसूची

उक्त वित्तीय संस्था आणि संस्थेचे संचालक, व्यवस्थापक, प्रवर्तक, अन्य व्यक्ती किंवा कर्मचारी यांच्या जप्त करावयाच्या रकमा किंवा अन्य मालमत्ता यांची सूची खालीलप्रमाणे आहे :—

(अ) स्थावर मालमत्ता तपशील :—

अ.क्र.	गाव/तालुका	मालमत्तेचे वर्णन	मालमत्ता धारकाचे नाव
१	मुलुंड, मुंबई उपनगर, महाराष्ट्र.	फ्लॅट नंबर ६०२, दुहेरी बालकनीसह (डुप्लेक्स विथ बाल्कनी), ऑरचिड तुलीप को.ऑप.हौ.सोसा., साईनाथ गार्डन, टाटा कॉलनी, मुलुंड (पूर्व), मुंबई (क्षेत्रफळ-कारपेट १४०१ चौ.फु./१३०.१५ चौ.मी.).	१. श्री. हसमुख लालजी गोगरी २. श्रीमती भावना हसमुख गोगरी
२	मुलुंड, मुंबई उपनगर, महाराष्ट्र.	फ्लॅट नंबर २४, तिसरा मजला, रिद्धी सिद्धी अपार्टमेंट, मिठांगर रोड, मुलुंड (पूर्व), मुंबई (क्षेत्रफळ- विल्डअप ६१० चौ.फु.).	श्री. हसमुख लालजी गोगरी
३	दादर, मुंबई शहर, महाराष्ट्र.	अॅपल प्लाझा, गाला नंबर ३१०, तिसरा माळा, सेनापती बापट मार्ग, दादर पश्चिम, मुंबई ४०० ०२८.	१. श्री. हसमुख लालजी गोगरी २. श्री. गौरव हसमुख गोगरी
४	दादर, मुंबई शहर, महाराष्ट्र.	दुकान नं. ०९, हरीगोपाल, कस्तुरीचंद मिल कंपाऊड, आगाशे पथ, दादर पश्चिम, मुंबई ४०० ०२८ (कारपेट क्षेत्रफळ- पहिला मजला ४१३ चौ.फु., पोटमाळा क्षेत्रफळ ३८२ चौ.मी.).	१. श्री. हसमुख लालजी गोगरी २. श्रीमती कांचन शांतीलाल वोरा
५	मुलुंड, मुंबई उपनगर, महाराष्ट्र.	फ्लॅट क्र. १३०१ए, १३०१बी, १३ वा मजला, निष्ठा, बी.पी.एस. कंपाऊड, जैन मंदीराजवळ, देवीदयाल रोड, मुलुंड (पश्चिम), मुंबई ४०० ०८० (फ्लॅट क्र.१३०१ए चे क्षेत्रफळ- कारपेट ५९७ चौ.फु./५५.४८३ चौ.मी.). (फ्लॅट क्र.१३०१बी चे क्षेत्रफळ- कारपेट ४९५ चौ.फु./४६ चौ.मी.).	१. श्री. एकज धनजी छेडा २. श्रीम. तरला पंकज छेडा

अ.क्र.	गाव/तालुका	मालमत्तेचे वर्णन	मालमत्ता धारकाचे नाव
६	घाटकोपर, मुंबई उपनगर, महाराष्ट्र.	ए विंग, फ्लॅट क्र.३२, ६ वा माळा, शैलेजा बिल्डिंग, आर.बी.मेहता रोड, विक्रांत सर्कलजवळ, घाटकोपर (पूर्व), मुंबई ४०० ०७७. (क्षेत्रफळ कारपेट ७१५ चौ.फु.).	१. श्री. दिलेश नागजी विरा २. श्रीम. निता दिलेश विरा
७	घाटकोपर, मुंबई उपनगर, महाराष्ट्र.	ए विंग, रुम नं. ९०१, ९ वा माळा, शांती निवास, आर.बी.मेहता मार्ग, घाटकोपर(पूर्व), मुंबई ४०० ०७७. (कारपेट क्षेत्रफळ-८८१ चौ.फु./९८.२५ चौ.मी.).	१. श्री. दिलेश नागजी विरा २. श्रीम. कस्तुरबेन नागजी विरा
८	बोरिवली पश्चिम, मुंबई उपनगर, महाराष्ट्र.	फ्लॅट क्र.बी/२०१, २ रा मजला, प्रताप हेरीटेज को-ऑ. हाऊसिंग सोसायटी लि., एन.आर. कॉम्प्लेक्स, वीर सावरकर गार्डनसमोर, लोकमान्य टिळक रोड, बोरिवली(प.), मुंबई ४०० ०९२. (क्षेत्रफळ-१३१.५४ चौ.मी.).	१. श्री. रमणिकलाल छगनलाल देढीया २. श्री. जयेश रमणिकलाल देढीया
९	बोरिवली पश्चिम, मुंबई उपनगर, महाराष्ट्र.	फ्लॅट क्र.बी/२०२, २ रा मजला, प्रताप हेरीटेज को-ऑ. हाऊसिंग सोसायटी लि., एन.आर. कॉम्प्लेक्स, वीर सावरकर गार्डनसमोर, लोकमान्य टिळक रोड, बोरिवली(प.), मुंबई ४०० ०९२. (क्षेत्रफळ-८६.४० चौ.मी.).	१. श्रीमती निलम रमणिकलाल देढीया २. श्रीमती दिपा जयेश देढीया
१०	दादर, मुंबई शहर, महाराष्ट्र.	दादर साई प्रसाद को-ऑ.हौ.सोसायटी (प्रस्तावित), प्लॉट नं. २६७, कवलीवाडी, एस. के. बोले रोड, दादर पूर्व, मुंबई ४०० ०२८.	अशवाथा डेव्हलपर्स चे संचालक १. श्री. रमणिकलाल छगनलाल डेढीया २. श्री. हेमंत नानजी छेडा
११	माटुंगा, मुंबई, महाराष्ट्र.	आर.एच.असोशिएट्स, शॉप नं. ६२ (जुना शॉप नं. ३५), दुसरा मजला, महावीर बिल्डिंग नं. ०१, भंडारकर/तेलंगरोड, माटुंगा, सेन्ट्रल रेल्वे, माटुंगा मुंबई ४०० ०१९. (क्षेत्रफळ २९२.५६ चौ.फु.).	आर.एच.असोशिएट्स तर्फे श्री. हसमुख लालजी गोगरी
१२	मुलुंड, मुंबई उपनगर, महाराष्ट्र.	फ्लॅट नं. ३०ए, १२/१३ वा माळा (डुप्लेक्स फ्लॅट) कोणार्क इंद्रप्रस्थ को.ऑप.हौ.सोसा., जैन मंदिर रोड, नाहुर गाव, मुलुंड पश्चिम, मुंबई ४०० ०८०. (क्षेत्रफळ-८० चौ.मी.) सीटीएस क्र.६६५(पी), ६६६ (पी), ६६७ (पी), ६९९(पी), ७००(पी), ७०१.	१. श्रीम. भारती हेमंत छेडा २. श्री. हेमंत नानजी छेडा
१३	मुलुंड, मुंबई उपनगर, महाराष्ट्र.	सदनिका नं.५०१, माळा नं.५ वा मजला, पार्श्व विला बिल्डिंग, पार्श्व विला को.ऑ.हौ.सोसायटी, जंक्शन ऑफ एस एल रोड, आणि व्ही पी रोड, मुलुंड पश्चिम, मुंबई ४०० ०८०. सीटीएस नं.१३९८ए, क्षेत्रफळ ७९० चौ फूट बांधीव/ क्षेत्रफळ ७३.४२ चौ.मीटर.	श्रीमती छाया मुकेश छेडा

अ.क्र.	गाव/तालुका	मालमत्तेचे वर्णन	म लमत्ता धारकाचे नाव
१४	मुलुंड, मुंबई उपनगर, महाराष्ट्र.	सदनिका नं.५०२, माळा नं.५ वा मजला, पार्श्व विला बिल्डिंग, पार्श्व विला को.ऑ.हौ.सोसायटी, जंक्शन ऑफ एस एल रोड, आणि व्ही पी रोड, मुलुंड पश्चिम, मुंबई ४०० ०८०. स्टील्ट अधिक सात मजल्यांची इमारत प्लॉट नं.१९५ए. सीटीएस नं.१३९८ए, बांधीव मिळकतीचे क्षेत्रफळ ८०.९५ चौ.मी.	श्रीमती छाया मुकेश छेडा
१५	पिंपळास, भिवंडी, ठाणे, महाराष्ट्र.	मौजे पिंपळास, ता. भिवंडी, जि. ठाणे येथील सर्व्हे नं. ५७/२, ६७/२/१, ६९/५ व ६५/२४ (जुना स.नं. २२५/२४) या जागेवरील बिल्डिंग नं. ई-५ मधील तळमजल्यावरील इंडस्ट्रियल युनिट नं. ३०, (कारपेट क्षेत्र २४०० चौ.फु. (सर्व्हे नं. ५७/२).	श्री. मुकेश नानजी छेडा
१६	मागाठाणे, बोरिवली, मुंबई उपनगर, महाराष्ट्र.	मे.गार्डन सिव्युरिटीज अँड प्रापटीज एलएलपी सीटीएस क्र.१७७(भाग), १७७/१ ते ३ अर्धवट बांधकामासहित समाविष्ट, गाव मागाठाणे, तालुका बोरिवली, जि.मुंबई उपनगर ४०० ०६६.	श्री. मुकेश नानजी छेडा
१७	मुलुंड, मुंबई उपनगर, महाराष्ट्र.	प्लॉट नं. ३०बी, १२/१३ वा माळा (डुप्लेक्स प्लॉट) कोणार्क इंद्रप्रस्थ को.ऑप.हौ.सोसा., जैन मंदिर रोड, नाहुर गाव, मुलुंड पश्चिम, मुंबई ४०० ०८०. (क्षेत्रफळ-८० चौ.मी.) सीटीएस क्र.६६५(पी), ६६६ (पी), ६६७ (पी), ६९९(पी), ७००(पी), ७०१.	१. श्री. हेमंत नानजी छेडा २. श्रीम. भारती हेमंत छेडा
१८	पिंपळास, भिवंडी, ठाणे, महाराष्ट्र.	मौजे पिंपळास, ता. भिवंडी, जि. ठाणे येथील सर्व्हे नं. ५७/२, ६७/२/१, ६९/५ व ६५/२४ या जागेवरील बिल्डिंग नं. एफ-६ मधील तळ मजल्यावरील इंडस्ट्रियल युनिट नं. ११, (क्षेत्र २४०० चौ.फु. म्हणजेच २२३.०५चौ.मीटर कारपेट (सर्व्हे नं. ५७/२ व इतर) (क्षेत्रफळ २२३.०५चौ.मीटर).	श्रीमती गिनल मुकेश पारेख यांना श्री. रमणिकलाल सी.देढिया यांनी विकलेली आहे.
१९	पिंपळास, भिवंडी, ठाणे, महाराष्ट्र.	मौजे पिंपळास, ता. भिवंडी, जि. ठाणे येथील सर्व्हे नं. ५७/२, ६७/२/१, ६९/५ व ६५/२४ या जागेवरील बिल्डिंग नं. एफ-६ मधील तळ मजल्यावरील इंडस्ट्रियल युनिट नं. १२, (क्षेत्र २४०० चौ.फु. म्हणजेच २२३.०५चौ.मीटर कारपेट (सर्व्हे नं. ५७/२ व इतर) क्षेत्रफळ २२३.०५चौ.मीटर.	जय अजय अध्वर्यु यांना श्री. रमणिकलाल सी. देढिया यांनी विकलेली आहे.

अ.क्र.	गाव/तालुका	मालमत्तेचे वर्णन	मालमत्ता धारकाचे नाव
२०	पिंपळास, भिवंडी, ठाणे, महाराष्ट्र.	मौजे पिंपळास, ता. भिवंडी, जि. ठाणे येथील सर्वे नं. ५७/२, ६७/२/१, ६९/५ व ६५/२४ या जागेवरील बिल्डींग नं. एफ-६ मधील तळ मजल्यावरील इंडस्ट्रियल युनिट नं. १३, (क्षेत्र २४०० चौ.फु. म्हणजेच २२३.०५ चौ.मीटर कारपेट (सर्वे नं. ५७/२ व इतर) क्षेत्रफळ २२३.०५ चौ.मीटर.	श्री. केतन जयंतीलाल गोगरी यांना श्री. रमणिकलाल सी.देढिया यांनी विकलेली आहे.
२१	पिंपळास, भिवंडी, ठाणे, महाराष्ट्र.	मौजे पिंपळास, ता. भिवंडी, जि. ठाणे येथील सर्वे नं. ५७/२, ६५/२४, ६७/२/१ व ६९/५ या जागेवरील भूमि वर्ल्ड मधील बिल्डींग नं. एफ-६ मधील तळ मजल्यावरील इंडस्ट्रियल युनिट नं. १४, (क्षेत्र २४०० चौ.फु. कारपेट) (सर्वे नं. ५७/२ व इतर) क्षेत्रफळ २४०० चौ.फु.	श्री. हितेश जगशी मोटा यांना श्रीमती दिपा जयेश देढिया यांनी विकलेली आहे.
२२	पिंपळास, भिवंडी, ठाणे, महाराष्ट्र.	मौजे पिंपळास, ता. भिवंडी, जि. ठाणे येथील सर्वे नं. ५७/२, ६७/२/१, ६९/५, व ६५/२४ (जुना स.नं. २२५/२४) या जागेवरील बिल्डींग नं. एफ-६, मधील तळ मजल्यावरील इंडस्ट्रियल युनिट नं. १५, (क्षेत्र २२०० चौ.फु. कारपेट) (सर्वे नं. ५७/२ व इतर) क्षेत्रफळ २२०० चौ.फु.	श्रीमती दिपा जयेश देढिया
२३	पिंपळास, भिवंडी, ठाणे, महाराष्ट्र.	मौजे पिंपळास, ता. भिवंडी, जि. ठाणे येथील सर्वे नं. ५७/२, ६७/२/१, ६९/५ व ६५/२४ या जागेवरील बिल्डींग नं. एफ-६ मधील तळ मजल्यावरील इंडस्ट्रियल युनिट नं. १६, (क्षेत्र २२९६ चौ.फु. म्हणजेच २१३.३८ चौ.मीटर कारपेट) (सर्वे नं. ५७/२ व इतर) २१३.३८ चौ.मीटर.	श्री. नंदिश रमणिकलाल देढिया
२४	पिंपळास, भिवंडी, ठाणे, महाराष्ट्र.	मौजे पिंपळास, ता. भिवंडी, जि. ठाणे येथील सर्वे नं. ५७/२, ६७/२/१, ६९/५ व ६५/२४ या जागेवरील बिल्डींग नं. एफ-६ मधील पहिल्या मजल्यावरील इंडस्ट्रियल युनिट नं. १०३, (क्षेत्र २४०० चौ.फु. म्हणजेच २२३.०४ चौ.मीटर कारपेट) (सर्वे नं. ५७/२ व इतर) २२३.०४ चौ.मीटर.	श्री. रमणिकलाल सी.देढिया यांनी हीना देवेंद्र देढिया यांनी ही मालमत्ता विकलेली आहे.
२५	नाहुर, कुर्ला, मुंबई उपनगर, महाराष्ट्र.	फ्लॅट नं. ई १३, इमारत क्र.ई, ५ वा माळा, (डुप्लेक्स फ्लॅट) कोणार्क इंद्रप्रस्थ कॉ.ऑप.हौ.सोसा., जैन मंदिर रोड, नाहुर गाव, मुलुंड पश्चिम, मुंबई ४०० ०८०. (क्षेत्रफळ-१४५५ चौ.फु.) सीटीएस क्र.६६५ (पी), ६६६ (पी), ६६७ (पी), ६९९ (पी) व ७०० (पी).	श्री. कुशल भावनाजी छेडा

अ.क्र.	गाव/तालुका	मालमतेचे वर्णन	मालमत्ता धारकाचे नाव
२६	दहिसर, बोरिवली, मुंबई उपनगर, महाराष्ट्र.	नेमिनाथ डेव्हलपर्स सर्वे नं.२०१, हिस्सा नं.१, सीटीएस क्र. २१६०, २१६०/१ ते ८ क्षेत्रफळ-१ एकर १.७५ गुंठा आणि सीटीएस क्र.२१५९/१ ते ५, क्षेत्रफळ-४२२० चौ.मी. दहिसर गाव, श्रीकृष्ण नगर, बोरीवली पूर्व, तालुका बोरीवली, जिल्हा मुंबई उपनगर	नेमिनाथ डेव्हलपर्स चे संचालक १. श्री. रमणिकलाल छगनलाल देढिया २. जयेश रमणिकलाल देढिया.

(ब) जंगम मालमत्ता तपशील

बँक खात्यांचा तपशील :-

अ.क्र.	खाते धारकाचे नाव	बँकेचे नाव	खाते क्रमांक
१	मे.आर.एच. असोसिएशन	बँक ऑफ बडोदा	०४०६०२००००१४८२
२	रमणिकलाल छगनलाल देढिया	देना बँक	१२३१०००५७५१
३	रमणिकलाल छगनलाल देढिया	बँक ऑफ इंडिया	०००६१०१०००३०२४३
४	जयेश रमणिकलाल देढिया	बँक ऑफ इंडिया	०००६१०१०००३०२४५
५	निलमबेन रमणिकलाल देढिया	बँक ऑफ इंडिया	०००६१०१०००३०२४४
६	दिपा जयेश देढिया	बँक ऑफ इंडिया	०००६१०१०००३५२७७
७	हसमुख लालजी गोगरी	विजया बँक (बँक ऑफ बडोदामध्ये विलीन करण्यात आलेली आहे.)	५०४८०१०१००००६५८ (३६१७०१०००१४६१६)
८	हसमुख लालजी गोगरी	विजया बँक (बँक ऑफ बडोदामध्ये विलीन करण्यात आलेली आहे.)	५०४८०१०१००००६५८ (३६१७०१०००१४६१४)
९	पंकज धनजी छेडा	कॅनरा बँक	०२२६२०१००५०४६
१०	मुकेश नानजी छेडा	येस बँक	०५९६९०७०००००५१२
११	दिलेश नागजी विरा	कॅनरा बँक	००२६०१०२४६५२
१२	खुशाल भावनाजी छेडा (खुशाल ब. छेडा)	बँक ऑफ बडोदा	०५०७०२००००००३७
१३	हेमंत नानजी छेडा	एचडीएफसी बँक	००१५१६००००१३७४
१४	हेमंत नानजी छेडा	एचडीएफसी बँक	५०१०००५०६८३२३१
१५	हेमंत नानजी छेडा	एचडीएफसी बँक	१५७७१३३०००३०५१
१६	अश्वथा डेव्हलपर्स	भारत बँक	००३०१२१०००१४०८८
१७	अश्वथा डेव्हलपर्स	आयसीआयसीआय बँक	५७७७०५५००११४
१८	अश्वथा डेव्हलपर्स	आयसीआयसीआय बँक	५७७७०५५००११३
१९	अश्वथा डेव्हलपर्स	आयसीआयसीआय बँक	५७७७०५५००११२

इतर मालमत्तांचा तपशील :-

चारचाकी वाहने -

अ.क्र.	मोटर वाहन क्रमांक	मालमत्तेचा तपशील	मालकाचे नाव
१	एम एच-०१सी डी-१०३९	हयुंदाई क्रेटा	मे.आर.एच.असोसिएट्स
२	एम एच-०१ सी डी-१८०९	इनोव्हा क्रिस्टा	मे.आर.एच.असोसिएट्स
३	एम एच-०१ सी एच-२७७९	इनोव्हा क्रिस्टा	मे.आर.एच.असोसिएट्स
४	एम एच-०१ बी एस-०१२६	आक्टविया इलेगेन्स स्कोडा	मे.आर.एच.असोसिएट्स
५	एम एच-०१ बी वाय-२५५५	आक्टविया इलेगेन्स स्कोडा	मे.आर.एच.असोसिएट्स

दुचाकी वाहने -

अ.क्र.	मोटर वाहन क्रमांक	मालमत्तेचा तपशील	मालकाचे नाव
१	एम एच- ०१ ए डब्ल्यु-०६४५	टीव्हीएस वेगो	मे.आर.एच.असोसिएट्स
२	एम एच-०१ बी जे-७५४१	ऑक्टिवा (सीबीएस) बीएस ३	मे.आर.एच.असोसिएट्स
३	एम एच- ०१ बी जे-७५१६	डिस्कव्हर डीटीएस	मे.आर.एच.असोसिएट्स
४	एम एच-०१ क्यु ए-८००७	बजाज बॉक्सर सीटी	मे.आर.एच.असोसिएट्स
५	एम एच-०१ बी व्ही-४२७४	सी बी शार्इन (बीएस ३)	मे.आर.एच.असोसिएट्स

महाराष्ट्राचे राज्यपाल यांच्या आदेशानुसार व नावाने,

अनुप कुमार सिंग,
शासनाचे प्रधान सचिव (विशेष).